

EMPLOYMENT AND TRAINING ADMINISTRATION ADVISORY SYSTEM U.S. DEPARTMENT OF LABOR Washington, D.C. 20210	CLASSIFICATION WIOA State Planning
	CORRESPONDENCE SYMBOL OWI
	DATE March 4, 2016

**ADVISORY: TRAINING AND EMPLOYMENT GUIDANCE LETTER WIOA NO: 14-15
OPERATING GUIDANCE for the WORKFORCE INNOVATION AND
OPPORTUNITY ACT (WIOA or Opportunity Act)**

TO: STATE WORKFORCE AGENCIES
STATE WORKFORCE ADMINISTRATORS
STATE WORKFORCE LIAISONS
STATE AND LOCAL WORKFORCE BOARD CHAIRS AND DIRECTORS
STATE LABOR COMMISSIONERS
STATE LMI DIRECTORS
SENIOR COMMUNITY SERVICE EMPLOYMENT PROGRAM GRANTEEES
STATE APPRENTICESHIP AGENCIES
STATE DIRECTORS OF THE OFFICE OF APPRENTICESHIP
STATE DIRECTORS FOR VETERANS' EMPLOYMENT AND TRAINING
STATE UNEMPLOYMENT INSURANCE DIRECTORS
STATE WORKFORCE AGENCY VETERANS COORDINATORS

FROM: PORTIA WU /s/
Assistant Secretary

SUBJECT: Workforce Innovation and Opportunity Act (WIOA) Requirements for Unified
and Combined State Plans

1. Purpose. This Training and Employment Guidance Letter (TEGL) conveys the following to States:

- The vision and content requirements for Unified and Combined State Plans under WIOA;
- The deadline and submission process for Unified and Combined State Plans under WIOA (Section 11);
- The requirements to have approved Unified or Combined State Plans in place for Program Year (PY) 2016 and beyond for the six core programs of WIOA; and
- The options for States to incorporate all or portions of partner programs into their State plan submissions if they choose to submit a Combined State Plan.

This guidance—developed jointly by the Departments of Labor (DOL), Education (ED), Health and Human Services (HHS), Agriculture (USDA), and Housing and Urban Development (HUD) (Departments) — provides an overview of the Administration's priorities in relation to the WIOA planning requirements, explains the planning requirements where necessary, and instructs States regarding submission procedures. Each of these Departments will issue similar guidance separately. This guidance also provides the

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deadlines for the Unified or Combined State Plan, depending on which option the State chooses to submit, as well as modification requirements. The Departments recognize that States have been engaged in the planning process for the initial Unified or Combined State Plan for some time and commend States for their efforts while awaiting finalization of the requirements and guidance from the Departments.

For the initial four-year Unified and Combined State Plans, States must submit their Unified or Combined State Plans to the Departments by March 3, 2016; however, Plans submitted by April 1, 2016 will be considered timely. States should submit the Plans via the online portal described in Section 11.

WIOA became law on July 22, 2014 and supersedes titles I and II of the Workforce Investment Act (WIA) of 1998, and amends the Wagner-Peyser Act and the Rehabilitation Act of 1973. The Departments of Labor and Education published a set of proposed regulations for implementing WIOA through the posting of five Notice of Proposed Rulemaking (NPRMs) documents. These NPRMs were open for public comment until June 15, 2015, and the Federal agencies are reviewing, analyzing and considering all the comments received. The final WIOA rules will be issued in 2016.

To continue implementation prior to issuance of the final rules, a series of WIOA Operating Guidance documents are being issued which inform the workforce system of the important planning and organizational work necessary to comply with the WIOA statutory requirements. The Operating Guidance TEGLs provide a framework for program activities until the publication of the final rules, and this TEGL is one in a series of the WIOA Operating Guidance.

2. **References.** See Attachment I.
3. **Background.** WIOA requires the Governor of each State to submit a Unified or Combined State Plan to the Secretary of Labor that includes a four-year strategy for the State's workforce development system. States must have Federally-approved State Plans to receive funding for the six core programs'. At a minimum, States must submit a Unified State Plan, which encompasses the six core programs under WIOA. States have the option to submit a Combined State Plan, which includes the six core programs of the Unified State Plan, plus one or more other partner programs, described at Section 4 of this TEGL. For purposes of the Unified or Combined State Plans, the term "State" refers to the 50 States, the District of Columbia, Puerto Rico, American Samoa, Guam, the U.S. Virgin Islands, the Northern Mariana Islands, and, as appropriate for certain programs, the Republic of Palau.
4. **Unified and Combined State Plan Options.** A State has two options for submitting a WIOA State Plan— a Unified State Plan or a Combined State Plan. Section 102(a) of WIOA requires each State, at a minimum, to submit a Unified State Plan that fosters strategic alignment of the core programs, which are:

- the Adult program (Title I),
- the Dislocated Worker program (Title I),
- the Youth program (Title I),
- the Adult Education and Family Literacy Act program (Adult Education or AEFLA) (Title II),
- the Wagner-Peyser Act program (Wagner-Peyser Act, as amended by Title III), and
- the Vocational Rehabilitation (VR) program (Title I of the Rehabilitation Act of 1973, as amended by Title IV).

In addition, WIOA permits a State to submit a Combined State Plan including the aforementioned core programs plus one or more of the Combined State Plan partner programs listed in section 103(a)(2). States choosing to submit a Combined State Plan must incorporate 1) all of the common planning elements required in the Unified State Plan; 2) additional elements describing how the State will coordinate the optional programs with the core programs; and 3) additional elements required by the Combined State Plan partner program(s) that are included (WIOA sec. 103(b)(3)).

More specifically, when a State includes a Combined State Plan partner program in its Combined State Plan, the State need not submit a separate plan or application for that particular program, with certain exceptions identified in section 9 of this guidance. If included in the plan as a partner, Combined State Plan programs are subject to the “common planning elements” (Sections II-IV of the State Plan Requirements in the Unified and Combined State Plan Information Collection Request (ICR) discussed in section 5) and program-specific requirements for that program when such planning requirements exist separately for the program outside of WIOA. The Combined State Plan partner programs are—

- Career and technical education programs authorized under the Carl D. Perkins Career and Technical Education Act of 2006 (20 U.S.C. 2301 et seq.);
- Temporary Assistance for Needy Families program (42 U.S.C. 601 et seq.);
- Employment and training programs under the Supplemental Nutrition Assistance Program (programs authorized under section 6(d)(4) of the Food and Nutrition Act of 2008 (7 U.S.C. 2015(d)(4)));
- Work programs authorized under section 6(o) of the Food and Nutrition Act of 2008 (7 U.S.C. 2015(o));
- Trade Adjustment Assistance for Workers programs (Activities authorized under chapter 2 of Title II of the Trade Act of 1974 (19 U.S.C. 2271 et seq.));
- Jobs for Veterans State Grants program (programs authorized under 38 U.S.C. 4100 et. seq.);
- Unemployment Insurance (UI) programs (UI Federal-State programs administered under State unemployment compensation laws in accordance with applicable Federal law);
- Senior Community Service Employment Program (programs authorized under title V of the Older Americans Act of 1965 (42 U.S.C. 3056 et seq.));
- Employment and training activities carried out by HUD;

- Community Services Block Grant (CSBG) (employment and training activities carried out under the Community Services Block Grant Act (42 U.S.C. 9901 et seq.)¹; and
 - Reintegration of Ex-Offenders program (programs authorized under section 212 of the Second Chance Act of 2007 (42 U.S.C. 17532)).
5. **Planning Requirements.** States must use the ICR *Workforce Innovation and Opportunity Act (WIOA) Unified and Combined State Plan Requirements* published under Office of Management and Budget (OMB) control number 1205-0522 to develop and submit the WIOA Unified or Combined State Plan and in accordance with instructions described in Section 11. A copy of the ICR, which complies with statutory requirements set forth in, as appropriate, sections 102 and 103 of WIOA, is available at https://www.doleta.gov/wioa/State_Plan_Resources.cfm. A copy of these requirements is also available through the web-based platform, discussed in Section 11 of this guidance, developed specifically for the required electronic submission².
6. **Purpose and Summary of the State Plan.** Under WIOA, the Unified and Combined State Plans communicate the State's vision for the State workforce system and serve as a vehicle for aligning and integrating this system across Federal programs. Previously governed by WIA, WIOA improves planning requirements to foster better alignment of Federal investments in job training and education, to integrate service delivery across programs, to improve efficiency in service delivery, and to ensure that the workforce system is job-driven and matches employers with skilled individuals. Specifically, this reform promotes a shared understanding of the workforce needs within each State; fosters development of more comprehensive and integrated approaches, such as career pathways and sector strategies, for addressing the needs of businesses and workers; and enables the system to provide a wider range of coordinated and streamlined services to their shared customers. WIOA requires States to plan across core programs and include this planning process in the Unified or Combined State Plans. Economic, education, and workforce partners at the State, regional, and local level should be engaged in this planning process with the goal of improving the workforce development system.

State Plans should reflect strategies that advance these key WIOA principles:

- Increase access to and opportunities for the employment, education, training, and support services that individuals, particularly those with barriers to employment, need to succeed in the labor market;

¹ States that elect to include employment and training activities carried out under the Community Services Block Grant (CSBG) Act (42 U.S.C. 9901 et seq.) under a Combined State Plan would submit all other required elements of a complete CSBG State Plan directly to the Federal agency that administers the program. Similarly, States that elect to include employment and training activities carried out by the Department of Housing and Urban Development that are included would submit all other required elements of a complete State Plan for those programs directly to the Federal agency that administers the program.

² The Office of Management and Budget (OMB) has approved the Workforce Innovation and Opportunity Act (WIOA) Unified and Combined State Plan Requirements under OMB Control Number 1205-0522 in accordance with the Paperwork Reduction Act.

- Align workforce investment, education, and economic development systems in support of a comprehensive, accessible, accountable, and high-quality workforce development system;
- Improve the quality and labor market relevance of workforce investment, education, and economic development efforts;
- Promote improvement in the structure and delivery of services;
- Increase the prosperity of workers and employers, the economic growth of communities, regions and States, and the global competitiveness of the United States;
- Provide innovative workforce investment activities, through integrated workforce development systems, that increase employment, retention, and earnings of participants and that increase postsecondary credential attainment and, as a result, improve the quality of the workforce, reduce welfare dependency, increase economic self-sufficiency, meet skill requirements of employers, and enhance productivity and competitiveness of the nation; and
- Measure effectiveness, improve transparency, and support informed consumer choice through performance reporting, evaluation, and data systems that support these activities.

7. **Plan Structure.** The Departments envision that this plan will describe how the State will develop and implement a unified, integrated workforce system, rather than a plan that separately discusses the State’s approach to operating each program individually. The major content areas of the Unified or Combined State Plan include strategic and operational planning elements. WIOA separates the strategic and operational elements to facilitate cross-program strategic planning. The Strategic Planning and Operational Planning Elements are the “common elements” of the plan. They should incorporate all of the core programs, any Combined State Plan partner programs that are included and required one-stop partners. This new approach enables States to involve different levels of the workforce system in developing the appropriate sections of the plan. For example, the State Workforce Development Board may focus on developing the State vision or setting strategic direction in the Strategic Plan section, while the State agency may focus on the Operational Plan.

The **Strategic Planning Elements** of the Unified or Combined State Plan must include an analysis of the State’s current economic environment and identification of the State’s overall vision for its workforce development system, including analyses of the State’s workforce characteristics and workforce development activities. These analyses drive the required vision and goals for the State’s workforce development system and alignment strategies for workforce development programs to support economic growth. For Combined State Plans, the Strategic Planning Elements apply to Combined State Plan partner programs included in the plan as well as to all of the core programs.

The **Operational Planning Elements** section identifies the State’s planned actions to implement and support the State’s strategic vision and goals as identified in the Strategic Planning Elements section. This section ensures that the State has the necessary infrastructure, policies, and activities to meet its strategic goals, implement its alignment strategy, and support ongoing program development and coordination. The State Operational

Plan must elaborate on the Strategic Plan section relating to the State's plans and resources for an aligned and integrated workforce system by discussing how the programs included in the State Plan will serve various individual participants. For instance, the State Operational Plan should discuss how services for employers and various job seekers will be delivered. Similarly, the State Plan must also describe the State's plans to align data systems and support evaluations. The structure of the Operational Planning Elements in the law and ICR is:

- State Strategy Implementation;
- State Operating Systems and Policies;
- Common Assurances;
- Program-Specific Requirements for the Core Programs; and
- Program-Specific Requirements for the Combined State Plan partner programs.

8. **Creating High Quality Strategic and Operational Planning Elements.** The Departments encourage States to include the following factors in the development and ongoing process of planning over time for the common elements of the State Plan.

- a. Strategic and Operational Planning Elements should incorporate WIOA's key principles (noted above), as well as the Departments' current policy priorities. In particular, the strategic and operational planning elements should align with the Departments' shared Vision for the Workforce System, as described in [TEGL 19-14](#), and the Departments' shared Vision for the One-Stop Career Center System, as described in [TEGL 04-15](#). States should also review program specific TEGs, available at www.doleta.gov/wioa, to include program priorities as a part of state planning where appropriate.
- b. Workforce programs operate within the context of a regional labor market. States must use reliable labor market information and workforce information as the basis for the development of policies, strategic investments, program design, and service delivery, in order to ensure that customers have high quality information available to inform their decisions. The State Plan must include a description of the labor market and economic conditions in the state to identify critical industries, including population and workforce trends, and describe the economic challenges facing the State that need to be addressed to meet the needs of businesses, workers, and job seekers. Strategies and program decisions at the State and local levels should be based on, connected to, and aligned with the labor market trends and economic analysis. The professional analysis of available data should result in labor market relevant goals, strategies and planned outcomes that make an impact on regional labor markets, and that advance the economic prosperity of customers served.
- c. Strategic and Operational Planning Elements should also reflect a robust analysis of the State's current workforce development, education, and training activities, including their opportunities, strengths, and weaknesses; their capacity to serve the

needs of businesses and individuals; their current level of cross-program alignment; and their use of evidence-based practices.

- d. Operational Planning Elements should clearly articulate the specific actions, milestones and activities that the State will undertake to increase program alignment and integration of services, and describe ongoing assessment of those activities, as allowable by law. While not all-inclusive, some important examples of program alignment and integration include:
 - i. Partnering across the Adult, Dislocated Worker, Youth, TANF, Adult Education, VR, and other programs to implement comprehensive career pathway approaches that align and bridge training, education, employment, and supportive services at the local and State levels. This partnership should engage employers and enable individuals to move beyond adult basic education and succeed in postsecondary education, earn industry-recognized credentials, and advance along a career path.
 - ii. Partnering across the core programs, economic development, education, and other programs to develop sector strategies and other aligned services geared to serving businesses. Examples include:
 - o outreach and marketing to the business sector;
 - o development of business engagement goals in collaboration with members of the State Board;
 - o training for Business Service Representatives (BSRs), Rapid Response Coordinators and other staff that work directly with businesses;
 - o development of sector partnerships among State, local businesses, professional service organizations, and trade associations including linkages with sponsors of registered apprenticeship programs;
 - o services and resources provided to business, including on-the-job-training (OJT), customized training, incumbent worker training, recruitment, toolkits, data visualization, among others; and
 - o development of standardized metrics of success for business engagement activities such as repeat business, return on investment, and new hires.
 - iii. Improving the connection between the WIOA core programs and UI systems to enhance access to reemployment services for all unemployed job seekers, including UI claimants and transitioning veterans, and enhancing service delivery through integrated service strategies and the creative use of technology.
 - iv. Using Registered Apprenticeships, on-the-job training, and other work-based training strategies to meet the training needs for all job seekers served by One-

Stop Career Centers as well as satisfying employer needs for access to skilled workers and talent pipelines.

- v. Connecting the multiple systems that serve disconnected youth such as partnering with human service agencies to support summer employment and work experiences throughout the year; coordinating with Adult Education to ensure integrated education and training opportunities; working with VR to serve in-school youth as they transition from the secondary education system to postsecondary education, training and employment; developing innovative pre-apprenticeship and youth apprenticeship programs that lead to successful placement in Registered Apprenticeship programs; or improving coordination among existing programs, such as Job Corps and YouthBuild.
- vi. Comprehensively serving dislocated workers impacted by economic displacement. The variety of programs that serve dislocated workers—Rapid Response, TAA, the WIOA Dislocated Worker program, and UI and Reemployment Assistance Services—should be strategically coordinated to maximize efficient use of funds and to provide the most comprehensive supports and services available to impacted workers. This can include integrating data systems, streamlining case management and assessment, and ensuring needed job search or training services are provided.
- vii. Connecting the multiple systems that address the specific needs of individuals with barriers to employment (as defined in WIOA sec. 3(24)), such as individuals with disabilities or English language learners, and articulating how programs will collaborate to provide the following:
 - o conducting outreach activities to individuals with barriers to employment;
 - o conducting training activities for One-Stop Career Center and partner staff on how to work with these populations and the available community-based resources and Federal resources such as the toolkit available at <https://doors.workforce3one.org/page/resources>;
 - o partnering with agencies and organizations serving specific populations;
 - o collaborating with the business sector to make the business case for hiring populations with barriers;
 - o implementing strategies to increase access to on-the-job-training, mentoring, Registered Apprenticeship, internship and job-shadowing opportunities;
 - o providing educational and training services that lead to career pathways opportunities and the development of talent pipelines;
 - o implementing plans to improve securing a job, retaining employment, and return-to-work strategies for job seekers who are disconnected from the workforce; and

- o implementing designs to create a universally accessible, welcoming, user-and customer-friendly environment for the delivery of employment services, including remote services to rural areas. For examples of strategies to achieve universal accessibility see Training and Employment Notice 1-15 available at:
https://wdr.doleta.gov/directives/attach/TEN/TEN_01-15.pdf.

9. **Special Considerations for Combined State Plan Partner Programs.** The information collections for the program-specific portion of the State plans for the Combined State Plan partner programs will continue to exist under existing state planning ICRs for those programs, as governed by those programs' authorizing legislation. Once a Combined State Plan is approved, the State is not required to submit any other State plan to receive federal funding for any optional program covered under that Combined State Plan, with some exceptions described below.

Note that some of the other programs that a State may include in the Combined State Plan currently fulfill their program-specific State planning requirements through a separate information collection administered by the program's appropriate Department. For example, section 103(b)(2) of WIOA (referring to sec. 103(a)(2)(J) and (K)) specifically allows the employment and training *activities*—rather than the full program—carried out under the CSBG Act administered by HHS and employment and training activities funded by HUD to be included in a WIOA Combined State Plan. Therefore, if States choose to include programs such as these in the Combined State Plan, only the portion of the existing planning requirements that address the employment and training *activities* should be included in the Combined State Plan. States still must submit all other required elements of a complete State Plan for those programs directly to the relevant Departments.

Portions of the Combined State Plan covering a program or activity, excluding those related to the core programs, are subject to approval by the head of the Federal agency that administers such program (WIOA sec. 103(d)(2)). The portions of the Combined State Plan related to the core programs are subject to the same approval requirements applicable to the Unified State Plan (WIOA sec. 102(c)).

States that include UI in their Combined State Plan, carried out under Title III, Section 302, of the Social Security Act, including Sections 303(a)(8) and (9) which govern the expenditure of funds, should submit their UI State Quality Service Plan (SQSP) following the cycle as outlined in the current Employment & Training Handbook No. 336, UI SQSP Planning and Reporting Guidelines.

The Jobs for Veterans State Grant (JVSG) programs, carried out under chapter 41 of title 38 of the U.S. Code, require both a JVSG State Plan and a separate annual application for funding. States that include the JVSG programs in their Combined State Plan would submit the JVSG State Plan information in their Combined State Plan, and would submit their funding applications annually, as required by current VETS guidance.

For Combined State Plans, the common elements of the State Plan, those portions covering the core programs, and programs administered by the DOL or ED, will be considered approved 90 days after receipt unless either Secretary informs the State in writing, during the 90-day period, that the plan is inconsistent with WIOA's State Plan requirements or the requirements authorizing the core program, as appropriate. Those portions of the plan covering programs administered by HUD, USDA and HHS must be approved or disapproved within 120 days of receipt, by those Departments. For the six core programs, decisions regarding approval or disapproval and funding status may be determined separately from the determination of approval, disapproval, or completeness of the program-specific requirements of Combined State Plan partner programs and activities described in the Combined State Plan. For example, if all the common planning elements and program-specific requirements for the core programs are met, approval and funding may proceed regardless of specific issues that may be identified in the program-specific sections for any Combined State Plan partner programs.

- 10. Stakeholder Collaboration and Comment is Key.** Stakeholder collaboration, review and comment are key requirements of the planning process. State Workforce Development Boards are responsible for overseeing the development, implementation, and modification of the plan and for convening all relevant programs, required partners, and stakeholders. The State Plan must be developed with the assistance of the State Board, as required by sec. 101(d) of WIOA, and must be developed in coordination with administrators that have optimum policymaking authority for the core programs and required One-Stop partners. For Combined State Plans, entities responsible for planning or administering other programs included in the plan also must have an opportunity for review and comment.

Effective joint planning is fundamental to both Unified and Combined State Plans. Whether the State chooses to submit a Unified State Plan or a Combined State Plan, the State must develop the State Plan through joint planning and coordination across core programs and with required One-Stop partner programs and other programs and activities in the State Plan. Prior to submitting the Unified or Combined State Plan, the State agencies responsible for the administration of the core programs must have reviewed and commented on the appropriate operational planning portion of the State Plan and approved the elements as meeting the needs of the population served by such programs (see WIOA sec. 102(b)(2)(E)(iii)(I)).

States must provide the opportunity for public comment, which allows interested stakeholders to participate actively, effectively, and transparently in the development of the plan. The Governor must ensure that the State Plan is developed with an opportunity for public comment and input from representatives of Local Boards and chief elected officials; businesses; labor organizations; economic development entities; community-based organizations; adult and youth education and workforce development providers; institutions of higher education; disability service entities; youth-serving programs; veterans' service organizations; foster care, juvenile justice and other stakeholders with an interest in the services provided by the six core programs; any optional program included in a Combined State Plan; and the general public, including individuals with disabilities. See WIOA sec.

102(b)(2)(E)(iii)(II). Programs included in the Combined State Plan may require consultation with other specific individuals or groups. The State Board also must make information regarding the State planning process publicly available by holding regular open meetings (WIOA sec. 101(g)).

11. Instructions for Plan Submission. For the initial four-year Unified and Combined State Plans (covering the period July 1, 2016-June 30, 2020), States must submit their Unified or Combined State Plans to the Departments by March 3, 2016; however, Plans submitted by April 1, 2016, will be considered timely.³ States must submit the Plans via the online portal hosted by the Rehabilitation Services Administration (RSA), which allows the entire State Plan to be made available concurrently to DOL and ED, as well as other Departments if their programs are included. The submission portal is available along with other State Plan resources at <https://rsa.ed.gov/login.cfm?mode=form&usp=Y#skipnav>. Instructions on how to request State user accounts are available on the web link provided on this site. The Departments will deliver training on the portal to State users, and Federal staff will be available to provide basic technical guidance and to authorize individuals from the States to have read-only, and/or edit, access to the State Plan portal, as appropriate.

The portal will permit multiple users within a State to enter portions of the State's plan at the same time, thereby, allowing program partners to enter content that is common to all State plan partners as well as content that is specific to their program directly. In States where there is a separate VR program serving the blind, each VR program must complete a separate VR services portion of the Unified or Combined State Plan. Once State users enter all data and text into the portal, they may review the plan in its entirety, make edits and updates where needed, and view progress in entering plan information across programs. While multiple individuals in the State may enter content into the portal, only one State individual may submit the entire plan on behalf of all included programs through the portal for Federal review. The portal includes a certification that the official State "submitter" has the authority to do so.

States that include the Perkins program as part of their Combined State Plans will submit to the WIOA State Plan portal their currently approved Perkins State Plan, including any revisions the State determines are necessary. The portal will then redirect States from the WIOA State Plan portal via a link to the Perkins State Plan portal. On the Perkins State Plan portal, States will submit: (1) Request to Extend Perkins State Plan; (2) updated budget; and (3) proposed performance levels for the upcoming program year. ED will provide State Career and Technical Education Directors training, passwords, and technical support to upload their information into the WIOA State Plan portal and the Perkins State Plan portal.

States that include Supplemental Nutrition Assistance Program (SNAP) Employment and Training (E&T) as part of their Combined State Plan will submit their SNAP E&T specific State Plans into the WIOA State Plan portal, but must submit component details, participant

³ This extension was announced via a Question and Answer posted at <http://www.doleta.gov/WIOA/FAQs.cfm> on January 21, 2016.

levels, operating budget and fiscal year planned program costs to their Food and Nutrition Service (FNS) Regional Office.

12. Performance Negotiations for Core Programs. Separately, DOL and ED will disseminate joint guidance on the WIOA performance negotiation process. For the first Plan, the Departments will work with States during the negotiation process to establish the adjusted levels of performance for each of the primary indicators for the core programs. If necessary, some may be adjusted after the release of the final regulation and Joint Performance ICR. Additionally, DOL and ED acknowledge that for some indicators of certain core programs there is insufficient or no historical data available on which to build the required statistical adjustment model and consequently establish levels of performance using the statistical model as part of the negotiation process. Therefore, DOL and ED will use a “phased-in” approach to set levels of performance for certain indicators for certain programs. The appendix in the Unified and Combined State Plan ICR discussed in Section 5 and in Attachment II of this guidance reflects this approach and displays which indicators/programs DOL and ED have proposed to negotiate for PY 2016. See Attachment II of this guidance for more instructions on establishing performance levels and acceptable baseline indicators.

13. State Plan Modifications. Given the multi-year life of the State Plan, States must revisit State Plan strategies regularly, reassess their effectiveness and labor market relevance, and when needed, adjust these strategies to respond to the changing economic conditions and workforce needs of the State. At a minimum, States must submit a modification to the Unified or Combined State Plan at the end of the first two-year period of any four-year plan, and under specific circumstances described in sec. 102(c)(3)(A) of WIOA.

The Departments have determined that for any Combined State Plan program included in the plan with a different planning cycle from WIOA, States should submit program-specific modifications that align with the natural planning cycles for that specific program, unless the 2-year WIOA modification cycle can accommodate that program’s planning and modification cycle. For example, if a State chooses to include Career and Technical Education Programs under the Perkins Act, as a part of its Combined State Plan, the State would submit program-specific plan modifications *annually* to align with the Perkins Act’s annual State plan cycle. Such modifications must be submitted to the relevant Secretary for that program directly, in addition to the DOL and ED via the web portal. As another example, the TANF law requires a State to have submitted a plan within 27 months of the end of the first fiscal quarter in order to receive TANF funds for that fiscal year. Therefore, adopting the more frequent two-year WIOA cycle for modifications should accommodate TANF’s cycle, allowing a State to make all changes to each portion of the Combined State Plan concurrently. In its Combined State Plan, the State may choose to describe in the State Plan the planning cycles of the Combined State Plan programs. In addition, the State may describe intentions to submit future modifications to comply with those planning cycles. HHS intends to publish separate guidance that outlines how a State could align its WIOA and TANF plan renewal cycles.

14. Special Instructions for Single-Area States. Item VI(d), in the Title I program-specific State Plan requirements (in the Unified and Combined State Plan ICR discussed in Section 5)

is directed at Single-Area States. It requires them to “submit any information required in the local plan” with the submission of its State Plan. DOL is exercising its transition authority provided in WIOA sec. 503 to delay the requirement that Single-Area States include a local plan with their initial four-year State Plan submission until DOL provides guidance to those specific States.

15. Action Requested. In accordance with the Information Collection Request, *Workforce Innovation and Opportunity Act (WIOA) Unified and Combined State Plan Requirements*, States must submit a WIOA Unified or Combined State Plan to the Departments on March 3, 2016, but no later than April 1, 2016, using the web portal described in Section 11 of this guidance.

16. Resources and Tools.

- WIOA Related Guidance, https://wdr.doleta.gov/directives/All_WIOA_Related_Advisories.cfm
- WIOA Fact Sheets, <https://www.doleta.gov/WIOA/FactSheet.cfm#>
- Resources and Tools for Workforce Professionals, <https://www.doleta.gov/usworkforce/>
- Guide to State and Local Workforce Data, Third Edition, <https://winwin.workforce3one.org/view/2001212365477234753/info>
- Section 188 Disability Reference Guide, https://wdr.doleta.gov/directives/attach/TEN/TEN_01-15.pdf
- State Plan Resources https://www.doleta.gov/wioa/State_Plan_Resources.cfm

17. Inquiries. Direct inquiries to the relevant Employment and Training Administration Regional Office.

18. Attachments.

- Attachment I — References
- Attachment II — Appendix I for State Plan ICR